

TEXT OF THE PREAMBLE

THE CONSTITUTION OF INDIA PREAMBLE

“We, **THE PEOPLE OF INDIA**, having solemnly resolved to constitute India into a **SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC** and to secure to all its citizens:

JUSTICE, Social, Economic and Political; [UPSC 2013]
LIBERTY of thought, expression, belief, faith and worship;
[UPSC 2017]

EQUALITY of status and of opportunity; and to promote among them all;

FRATERNITY assuring the dignity of the individual and the unity and integrity of the Nation;

IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November 1949, do **HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION**”.
[UPSC 2021]

Introduction

- The preamble to the Indian Constitution is based on the ‘**Objective Resolution**’, drafted and moved by **Pandit Nehru**, and adopted by the Constituent Assembly. The Constituent Assembly enacted it **after the rest of the Constitution** was already enacted to ensure its **conformity and coherence** with the Constitution.
- It has been **amended only once** so far by the **42nd Constitutional Amendment Act (1976)** by adding three **new words** - ‘**SOCIALIST**’, ‘**SECULAR**’, and ‘**INTEGRITY**’.
- It contains the **grand and noble vision** of the **Constituent Assembly** and reflects the **dreams, mind and aspirations of the founding fathers** of the Constitution. [UPSC 2017]
- **Limitations of the Preamble in Jurisprudence**
 - **No Governmental Power:** Does not grant authority to the Executive, Legislature, or Judiciary.
 - **Cannot Override Provisions:** Cannot supersede explicit constitutional articles.
 - **Non-Enforceable:** Cannot be enforced by the in courts.
 - **Clarification Role:** The Preamble itself has been vague, general and ambiguous. Its constitutional

position has itself been debatable on the courts of justice.

- **Constitution Day (Samvidhan Divas)**
 - **Date:** Celebrated annually on **26th November**.
 - **Purpose:** Commemorates the adoption of the Constitution of India in 1949 and promotes constitutional values among citizens.
 - **Notification:** The Ministry of Social Justice and Empowerment announced this celebration on **19th November 2015**. [UPSC 2023]

COMPONENTS OF PREAMBLE

Source of Authority of the Constitution	People of India
Nature of Indian State	Sovereign, Socialist, Secular, Democratic, Republic.
Objectives of the Constitution	Justice, Liberty, Equality, Fraternity.
Date of Adoption of the Constitution	26 November 1949
Philosophy of the Constitution	Gandhi’s idea of Swaraj (Self-reliance, Justice, Tolerance)

SIGNIFICANCE OF THE PREAMBLE

- “It is the summary and philosophy of the Indian Constitution and key to the mind of the Constitution makers”. Supreme Court
- “**Identity card of the Constitution**” – N.A. Palkhivala
- “**Horoscope of our sovereign Indian democratic republic**” – K.M. Munshi
- “**Key note to the Constitution**” – Sir Ernest Barker
- “**Guiding light for judicial interpretation**” – Justice Sikri in the Kesavananda Bharati case.

KEYWORDS IN PREAMBLE - MEANING AND FEATURES

“We the People of India”:

Emphasises that the constitution is made **by and for the Indian people**. It emphasises the “**concept of popular sovereignty**” whereby citizens are the ultimate source of constitutional authority, ensuring governance aligns with their well-being.

Sovereign

- **Definition:** It signifies that India is a fully independent State, free from the dominion or dependency of any other country.
- **Independence in Affairs:** India has the authority to conduct both internal and external matters without interference. It can acquire foreign territories or cede parts of its own to other nations.
- **International Relations:** India's full membership in the Commonwealth of Nations with the British Crown as its head or Joining the United Nations Organization (UNO) does not compromise its sovereignty, reflecting its commitment to global cooperation while retaining independence.

Socialist

- **Definition:** Socialism is an economic and political system where the **means of production** are owned collectively or by the government, prioritising **social equality**.
- **Types of Socialism:**
 - **Democratic Socialism:** Characterised by a **mixed economy** with both public and private sectors, adopted by India.
 - **Communist Socialism:** Advocates for **total nationalisation** as prevalent in China, 'earlier'.
- **Indian Approach:** Blends **Marxism** and **Gandhian** principles to combat **poverty, ignorance, disease, and inequality**.

Gandhism and Marxism both aim for a **stateless and classless society** but differ in their approach.

- **Marxism** views the state as an instrument of oppression, serving the bourgeoisie, and advocates for class struggle and revolution to achieve a stateless society.
- **Gandhism** opposes even a minimal state due to its reliance on force, which contradicts non-violence. Gandhi favoured strengthening of local self-governments instead. **[UPSC 2020]**

- **Addition in Constitution:** Socialist nature is implicit in **Directive Principles of State Policy** (Articles- 38, 39, 39A, 41, 42, 43, 43A, 47), but the 42nd Amendment of 1976 mentioned it explicitly.

Secular

- **Definition:** In the Indian context, **secular** means equal treatment of all religions without discrimination. **42nd Amendment** the term '**secular**' was explicitly added in the **Preamble**, establishing India as a secular state.
- **Positive Secularism:** Emphasises equal status and support for all religions, fostering a diverse and inclusive society. Each religion receives equal recognition, regardless of size or influence.
- **Legal Standing:** The concept of a secular state is part of the **Basic Structure doctrine**, and the **Supreme Court** acknowledged its implicit presence in Articles **25-28 (Right to Freedom of Religion)**.

Indian vs Western Model of Secularism

Parameter	Indian Secularism	Western Secularism
Definition & History	Impartiality towards all religions; rooted in ancient traditions of tolerance.	Separation of church and state emerged as a reaction to religious wars in Europe.
Role of Religion	State can support and participate in religious activities.	Prohibits state involvement in religious matters.
Display of Religion	Freedom to practise with limited public display.	Generally restricts public religious displays.
State Intervention	Intervenes to eliminate harmful practices.	Non-intervention unless laws are violated.
Code of Law & Relation with Law	Personal laws vary by religion; they accommodate multiple religious principles.	Uniform legal code applies to all; laws are independent of religion.
Religion and Society	Religion is integral to society.	Religion is viewed as a private matter.
Inter and Intra-Religious Focus	Addresses both intra- and inter-religious issues.	Primarily focuses on intra-religious matters.
Rights & Influence	Protects individual and minority rights; religious groups can influence politics.	Emphasises overall liberty, with limited role of religious bodies in government.

Democratic

- **Definition:** Democracy allows citizens to enjoy **equal political rights**, elect rulers, and hold them accountable. It is based on the **doctrine of popular sovereignty**, where supreme power resides with the people. Articulated in the **Preamble**.
- **Forms of Democracy:**
 - **Direct Democracy:** Citizens exercise power directly (e.g., **Switzerland** using Referendums, Initiatives, Recalls, and Plebiscites).

- **Initiative:** Citizen-proposed statutes sent to the legislature or put on the ballot.
- **Recall:** Voters can remove public officials before term ends.
- **Referendum:** Voters accept or reject a legislation.
- **Plebiscite:** Direct vote on significant issues for establishing political conditions.
- **Indirect Democracy:** Elected representatives govern (parliamentary and presidential systems).

- **Indian Democracy:** A **representative parliamentary democracy** with an accountable executive. Features include **universal adult franchise, periodic elections, rule of law, independent judiciary, and non-discrimination.**
- **Comprehensive Approach:** Encompasses **political, social, and economic** dimensions.
- **Supreme Court Insight (1997):** The Constitution aims for an **egalitarian social order**, ensuring justice in India's **social and economic democracy.**
- **Note:** Democracy's superior virtue lies in the fact that it calls into activity, the intelligence and character of ordinary men and women. [UPSC 2017]

Republic

- **Definition:** A republic vests political sovereignty in the people (and not a monarch), ensuring no privileged class and equal access to public offices without any discrimination. Political sovereignty rests with the collective citizenry, fostering **equality and inclusivity** in governance.
- **Indian Republic:** The Head of State (President) is indirectly elected for a fixed **five-year term**, as stated in **Articles 56 (Source Indian Constitution).**

Justice

- **Definition:** It is the idea that all people should be given fair, equal, and balanced consideration and treatment. The idea of providing Social, Economic and Political justice in the Preamble is influenced by the **Russian Revolution (1917).**
- **Distributive Justice:** Combines social, economic, and political justice.
 - **Social Justice:** Ensures **equal treatment** of all citizens without distinction based on caste, colour, race, religion, or gender. No privileges for any group; aims to uplift **backward classes (SC, ST and OBC) and womens.**
 - **Economic Justice:** Eliminates discrimination based on **economic factors.** Focuses on reducing inequalities in **wealth, income, and property.** [UPSC 2013/2014]
 - **Political Justice:** Guarantees **equal political rights** and access to all political offices. Ensures every citizen has an **equitable voice** in government.
- **Overall Framework:** Justice is safeguarded through provisions in **Fundamental Rights and Directive Principles**, highlighting its comprehensive approach.

The term **social capital**, popularised by Robert Putnam, refers to “networks with shared norms, values, and understandings that facilitate cooperation.” It includes trust, mutual understanding, and shared values that foster community and cooperative action. Literacy rates and working-age population size are examples of human capital. Buildings and infrastructure represent physical capital. [UPSC 2019]

Liberty

- **Definition:** Liberty means **absence of restraints** on the activities of individuals [UPSC 2019]. It grants individuals the freedom to make choices and pursue activities without restrictions, promoting personal growth and the development of unique personalities. The ideals of liberty, equality, and fraternity in the Preamble are inspired by the **French Revolution (1789-99).**

“Where there is no Law, there is no Freedom. For liberty is to be free from restraint and violence from others, which cannot be where there is no law.” John Locke

[UPSC 2018]

- **Preamble Provisions:** Secures the liberty of **thought, expression, belief, faith, and worship** and emphasises that liberty is not absolute; it must be exercised within constitutional limitations (qualified). Fundamental Rights related to liberty are legally protected and enforceable in court.
- **Types of Liberty:**
 - **Negative Liberty:** Focuses on the **absence of interference**, ensuring individuals are free from obstacles and constraints.
 - **Positive Liberty:** Freedom to act in a way that allows individuals to take control of their lives and **achieve their fundamental purposes**, emphasising the importance of community.

Equality

- **Definition:** Equality signifies the **absence of special privileges** and ensures equal opportunities for all individuals, free from discrimination. [UPSC 2017]
- **Preamble Provisions:** The Preamble guarantees equality of **status and opportunities** across three dimensions: **Civic, political, and economic.**
 - **Civic Equality:** Ensures equality before the law (**Article 14**), prohibits discrimination (**Article 15**), provides equal opportunity in public employment (**Article 16**), abolishes untouchability (**Article 17**), and eliminates titles (**Article 18**).
 - **Political Equality:** Guarantees inclusion in electoral rolls (**Article 325**) and mandates elections based on adult suffrage (**Article 326**).
 - **Economic Equality:** Secures equal rights to livelihood and equal pay for equal work (**Article 39**), promoting a fair and just society in India.
- **Overall Significance:** The Constitution fosters a **fair and just society through this.**

Fraternity

- **Definition:** **Dr B. R. Ambedkar** defines fraternity as the sentiment of **shared brotherhood and sisterhood** among all Indians”.

- **Preamble Provisions:** It declares that the Fraternity has to ensure the dignity of individuals and the unity and integrity of the Nation by **Single Citizenship, Fundamental Rights, DPSPs, and Fundamental Duties**.
- **Fundamental Duties (Article 51A):** Every citizen must promote harmony and common brotherhood, transcending **religious, linguistic, regional, or sectional** diversities.
- **National Integration:** “Unity and integrity” addresses both psychological and territorial aspects, with Article 1 declaring India as a ‘Union of States’ to combat

communalism, regionalism, casteism, linguism, and secessionism. The term “integrity” was added by the **42nd Constitutional Amendment** in 1976.

Union of Trinity

- **Union of Trinity (Social Democracy):** Principles of **liberty, equality** and **fraternity** are not to be treated as separate items in a trinity. If any of these is absent, it will defeat the purpose of democracy. Without equality, liberty would produce the supremacy of the few over many. Equality without liberty would kill individual initiative.

SUPREME COURT CASES RELATED TO THE PREAMBLE

Case	Opinion of the Supreme Court (SC)
Berubari Union Case (1960)	The Preamble shows the general purpose behind several provisions of the Constitution. If terms used in articles are ambiguous, some assistance from the preamble could be taken for interpretation. SC held that the Preamble is not a part of the Constitution.
Golak Nath vs. State of Punjab (1967)	Justice Hidayatullah asserted that the Preamble contains enduring principles essential for government functioning, making it the eternal and unalterable essence of the Constitution.
Kesavananda Bharati Case (1973)	SC: The Preamble is a part of the Constitution. (Reversed its opinion as given in the Berubari Union (1960).) The Preamble can be amended , subject to the condition that it should not destroy the ‘Basic Structure’ of the Constitution.
LIC of India Case (1995)	SC again held that the Preamble is an integral part of the Constitution. [UPSC 2020]



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